

Prince Agrawal vs Anchal Bansal on 17 August, 2023

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NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

WP227 No. 495 of 2023

Prince Agrawal S/o Gajanand Agrawal Aged About 28 Years R/o Ward No. 1
Under The Overbridge, Korba, Tahsil And District Korba (Chhattisgarh)

---- Petitioner

Versus

Anchal Bansal W/o Prince Agrawal Aged About 27 Years Present R/o Anchal
Bansal, D/o Vinod Bansal, Bansal Medical Store, Patthalgaon, Tahsil And
P.S. Patthalgaon District Jashpur Chhattisgarh

---- Respondent

(Cause Title is taken from Case Information System)

For the Petitioner

: Shri Sandeep Shrivastava, Advocate.

For the Respondent

: Shri Surfaraj Khan, Advocate.

Hon'ble Shri Justice Rakesh Mohan Pandey

ORDER

17.08.2023

1. By way of this petition, the reliefs sought for by the petitioner, are as under:

"10.1 It is prayed that this Hon'ble Court may kindly be pleased to call for the entire records concerning the case of the petitioner from the learned Court below for its kind perusal.

10.2 That, this Hon'ble Court may kindly be pleased to pass an appropriate writ/direction quashing and setting aside the impugned order dated 23.02.2023 (Annexure P/1) passed in Civil Suit No. 09A of 2023 by learned Judge, Family Court, Jashpur (C.G.) by declaring the same to be illegal and inoperative in law.

10.3 That, this Hon'ble Court may kindly be pleased to pass an appropriate writ/direction for hearing the case of petitioner and the respondent separately i.e. Civil Suit No. 09A of 2023 and Civil Suit No. 4A of 2022 respectively.

10.4 Any other relief/reliefs which this Hon'ble Court may think fit and proper in the facts and circumstances of the case, with cost of the petition may also please be granted to the petitioners."

2. The facts of the present case are that the petitioner and the respondent are husband and wife and

their marriage was solemnized on 18.5.2020 at Patthalgaon and on account of some dispute, they started residing separately. As the parties were residing separately since 2020 itself, the petitioner/ husband filed a suit for dissolution of marriage under Section 13 of the Hindu Marriage Act on 4.9.2021, which was registered before the learned Family Court, Korba, District Korba as Civil Suit No. 190A of 2021. Later on, same was transferred to Jashpur and it was registered as Civil Suit No. 09A of 2023. Thereafter, the respondent/ wife moved an application under Section 9 of the Hindu Marriage Act before the learned Family Court, Jashpur on 7.1.2022 bearing Civil Suit No. 4A of 2022. During pendency of both the civil suits, the petitioner moved an application under Section 10 of the Code of Civil Procedure for stay of subsequent suit filed by wife under Section 9 of the Hindu Marriage Act and vide order dated 23.2.2023 the learned Family Court merged both the cases in one civil suit i.e. Civil Suit No. 9A of 2023 which was filed by the petitioner under Section 13 of the Hindu Marriage Act and cancelled the registration of Civil Suit No. 4A of 2022.

3. Learned counsel for the petitioner would submit that when two separate petitions moved under Sections 9 and 13 of the Hindu Marriage Act are pending before the same Court, an order for analogous hearing can be passed but both the cases cannot be merged in one case.

4. On the other hand, learned counsel for the respondent would oppose the submissions made by learned counsel for the petitioner.

5. Taking into consideration the fact that the learned Family Court has merged two cases in one case whereas, the cause of action, the parameters of consideration and the orders which would be ultimately passed in the proceedings are entirely different, therefore, the learned Family Court has committed an error of law in passing the order impugned, therefore, the order passed by the learned Family Court is hereby set aside. Both the civil suits bearing No. 4A of 2022 and 9A of 2023 are restored to their original numbers and the learned Family Court is directed to hear both the cases analogously.

6. Learned Family Court is also directed to conclude the proceedings of both the cases within a period of six months taking into consideration the fact that the case filed under Section 9 of the Hindu Marriage Act is pending since 4.9.2021.

7. A copy of the order be sent to the concerned Court.

Sd/-

(Rakesh Mohan Pandey) Judge Nimmi